a long haul for him in jail. All offences under the PMLA are cognisable and non-bailable. The Act leaves the burden of proof on the accused as against the established criminal law principle that presumes innocence until proven guilty. These strict provisions have been challenged in the SC, but the court, on July 27, 2022, upheld the PMLA's constitutional validity.

And this isn't the end of Kejriwal's troubles. The CBI is probing 'irregularities' in the renovation of Kejriwal's official residence after the BJP alleged that Rs 45 crore was spent on the exercise. The ED has already issued him summons over alleged irregularities in awarding Delhi Jal Board contracts. The CBI is also all set to seek custody of the CM in the liquor scam case.

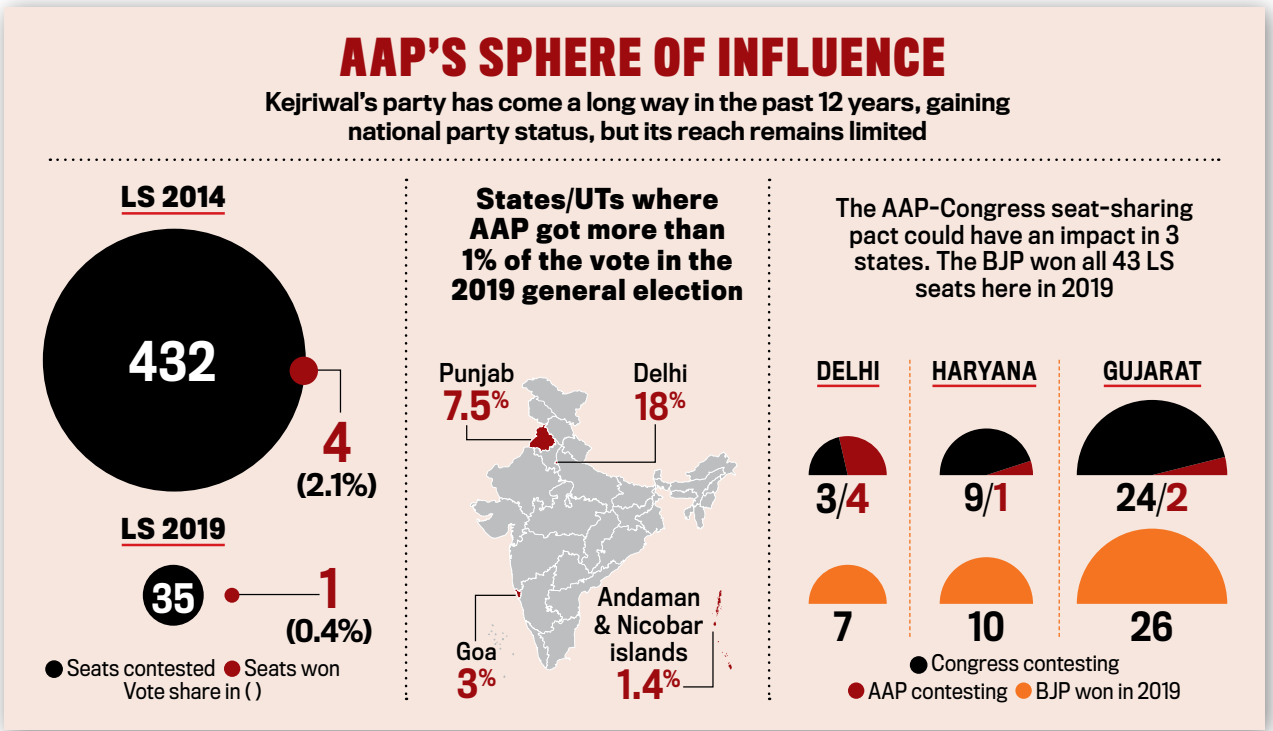
AAP'S EXISTENTIAL CRISIS

If Kejriwal fails to get bail before the Lok Sabha polls end, the party may face not just an electoral setback but an organisational debacle too. The Delhi CM is not just the face of the party, he is also the chief strategist who has invented a new grammar of effective political communication. His strategic acumen has helped the party negotiate every crisis. Over the years, AAP has centred around his personality, arguably by design on Kejriwal's part. Many of his IAC colleagues, such as psephologist Yogendra Yadav and lawyer Prashant Bhushan, left the party due to Kejriwal's "autocratic" approach.

Apart from Sisodia and Rajya Sabha MP Sanjay Singh, who have been arrested for the liquor scam, Satyendar Jain, another stalwart and former health minister, is also behind bars under a separate charge of money-laundering. Kejriwal's arrest thus puts tremendous pressure on the party's second-rung leaders. CM Mann, the other mass leader, is struggling to keep his flock together in Punjab. Within a week of Kejriwal's arrest, the party's only Lok Sabha MP from Jalandhar, Sushil Kumar Rinku, and Jalandhar West MLA, Sheetal Angural, joined the BJP. Sources suggest that 'Operation Lotus' is already under way to reel in demoralised AAP members and cause a split in the party, as the BJP did with the Shiv Sena and NCP in Maharashtra.

There is a reason why the BJP may go for the jugular. In the past 10 years, Delhi voters have given decisive but contrasting verdicts in the Lok Sabha and assembly elections. If the BJP won all seven Lok Sabha seats in 2014 and 2019, AAP swept the assembly polls in 2015 and 2020. In December 2022, AAP also wrested the Delhi civic body from the BJP. And for the 2024 Lok Sabha polls, AAP and the Congress are fighting together in Delhi, which may result in a consolidation of the anti-BJP votes. "There is no doubt that the BJP's long-term goal is to make the Opposition totally insignificant... Kejriwal was a serious threat for the future," says Prof. Narender Kumar, chairperson, Centre for Political Studies, JNU.

If Kejriwal remains incarcerated for long, AAP may suffer not just in the Lok Sabha election but also in the assembly polls scheduled for early next year. According to a survey by the Centre for the Study of Developing Societies (CSDS), 30 per cent of the



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